SYNTHETIC APPELLATE DOCKET — NOT FILED — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

OPENING BRIEF OF APPELLANT LEORA BENTON

Questions presented

Filed March 16, 2026.

Leora Benton asks whether the district court abused its discretion when it excluded the materially new subject in Tessa Wynn's declaration under Rules 26 and 37, despite Wynn's timely identification as a comparator witness and the availability of a limited cure before trial. She separately asks whether the admitted record permits a reasonable jury to find that Blue Cedar Compliance, Inc. selected her for termination because she opposed a sex-based assignment practice and participated in an EEOC proceeding.

The issues require different record boundaries and standards of review. JA194–JA195 may be considered when reviewing the exclusion ruling, but Benton does not use the excluded statement to establish the merits unless this court first sets the ruling aside. Even without it, Pike's documented knowledge, the six-week sequence, selective scoring changes, comparator exceptions, target-reaching alternatives, redistributed work, and expanding explanations create a genuine dispute under Rule 56 and Foster v. University of Maryland-Eastern Shore.

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Jurisdiction and timeliness

The district court had subject-matter jurisdiction under 28 U.S.C. § 1331 because Benton's sole claim arose under Title VII. It entered a memorandum opinion and separate final judgment disposing of that claim on December 19, 2025. JA236–JA249. Benton filed her notice of appeal on January 16, 2026, twenty-eight days after judgment. JA250–JA252. No post-judgment motion changed the time for appeal. This court therefore has jurisdiction under 28 U.S.C. § 1291.

The notice identifies the final judgment and the December 1 order excluding the late Wynn declaration. JA250–JA252. That interlocutory evidentiary order merged into the final judgment and is reviewable in this appeal. The district clerk certified the record on January 23, 2026, and this court recorded it complete on February 20. There is no dispute about appellate timeliness, finality, or the identity of the rulings challenged. Benton seeks review on the existing certified record, not supplementation with material created after judgment.

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Course of proceedings

Benton filed this action on June 16, 2025, alleging that Blue Cedar terminated her in a reduction in force because she had opposed sex-based allocation of prominent audit work and filed an EEOC charge. JA1–JA11. Blue Cedar denied retaliation. JA12–JA18. The parties exchanged disclosures, produced the employee-relations and RIF files, and deposed Benton, final decisionmaker Draven Pike, human-resources director Mira Solis, supervisor Naomi Voss, two retained managers, and the company's Rule 30(b)(6) designee.

The August 13 scheduling order closed fact discovery on October 10 and set October 17 as the last day for supplementation. Blue Cedar moved for summary judgment on October 27. Benton opposed on November 10 and attached Wynn's November 3 declaration. Blue Cedar moved to exclude the new subject, and the district court granted that motion on December 1. It later granted summary judgment on the admitted record. The appeal thus presents both the antecedent disclosure ruling and the independent sufficiency of the evidence that remained admitted.

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Wynn disclosure chronology

Benton identified Wynn in her initial disclosure as a retained employee with information about audit assignments, scoring, redistribution, and comparative treatment. JA24–JA29. Blue Cedar's disclosure described Wynn's duties and transition coverage. JA30–JA34. At her October 2 deposition, Wynn testified about the possible transfer of Benton's Northline work but did not recount protected- activity wording from her March 7 exchange with Voss. JA136–JA145.

While reviewing her transcript on October 13, Wynn recalled Voss asking after the March 7 calibration session: “Leora has made this an HR and EEOC problem; if her position is removed, can you take Northline?” Wynn reported the substance to Benton on October 14, and Benton forwarded it to counsel on October 15. Counsel interviewed Wynn on October 20. Wynn signed the declaration on November 3; Benton served it November 4 and filed it November 10. JA194–JA195, JA227–JA231. Counsel did not serve a subject-only supplement or seek leave by October 17.

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Standards of review and record boundary

This court reviews a disclosure-violation finding and a Rule 37(c)(1) exclusion for abuse of discretion. Benjamin v. Sparks organizes substantial justification and harmlessness around surprise, ability to cure, disruption, importance, and the nondisclosing party's explanation. A court abuses its discretion when it rests on a mistaken legal premise, disregards a material factor, or adopts a sanction outside the range supported by the circumstances.

Summary judgment is reviewed de novo. The court views admissible evidence and all reasonable inferences in the nonmovant's favor, without deciding credibility or choosing among supported accounts. The two standards do not collapse. The declaration and timing proffer remain reviewable to decide whether exclusion was proper. Unless exclusion is reversed, the protected-activity statement may not be used to fill a gap in the retaliation proof. Benton's merits argument honors that boundary and rests on the independent evidence identified in the joint chart and district opinion.

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The new wording arose within a disclosed relationship

Rules 26(a)(1)(A)(i) and 26(e)(1) require disclosure of persons and the subjects of their likely information, followed by timely correction of a materially incomplete response. Benton accepts that the protected-activity wording was important and more pointed than Wynn's deposition account. But it arose in a relationship, time period, and operational subject already disclosed: Voss asking Wynn about taking Northline if Benton's position were removed. Blue Cedar knew Wynn was a retained comparator and questioned her about that handoff.

That overlap does not eliminate the duty to supplement, but it bears on the degree of surprise and the appropriate response. The declaration did not identify a new witness, a new decisionmaker, an unknown RIF event, or a different employment action. It added Voss's asserted reason-linked words to a known March conversation. The district court correctly distinguished the subject from the timely comparator testimony, yet gave too little weight to the substantial disclosure already made when it selected complete exclusion rather than a targeted cure.

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Surprise and ability to cure favored a limited remedy

Blue Cedar first received the precise wording on November 4, after discovery and the October 17 cutoff. That timing created surprise. The question, however, is whether the surprise was incurable or required exclusion. The declaration comprised two pages. Wynn and Voss had already been deposed, remained available, and addressed the same Northline exchange in their testimony. A short supplemental deposition of each could have tested memory, context, and inconsistency. Blue Cedar could then have addressed the subject in its November 17 reply or sought a focused extension.

The summary-judgment hearing had not occurred, the December 1 order preceded the December 19 merits decision, and trial was set for January 26, 2026. Benton proposed limited examination rather than reopening every RIF subject. JA227–JA230. The district court emphasized that cure would impose work on Blue Cedar, but Rule 37's harmlessness inquiry asks whether practical cure exists, not whether cure is costless. A tailored deposition and brief response would have neutralized the specific surprise.

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Importance and explanation required closer calibration

The district court found the new subject important because it linked Voss's coverage inquiry to Benton's protected activity. JA233–JA234. Importance can increase the need for a meaningful cure even while increasing the harm from late disclosure. The court treated the latter consideration as decisive without adequately asking whether a sanction short of exclusion would preserve both fair testing and adjudication on a developed record. Wynn's statement did not purport to quote Pike or prove that he instructed Voss to retaliate. Its confined scope made a confined remedy feasible.

Counsel's explanation was imperfect but not concealment. Benton sent the information on October 15; counsel interviewed Wynn on October 20 and waited for a signed statement before serving it. JA231. Counsel should have supplemented the subject or sought leave by October 17. Yet the brief interval, the need to verify a recalled conversation, and the November 4 service occurred well before trial. Those circumstances supported fees, prompt examination, or a briefing adjustment rather than loss of the evidence altogether.

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Relief on the exclusion issue

Benton asks this court to vacate the narrow exclusion and remand for the district court to impose a proportionate cure. She does not ask the court to treat Wynn's account as true, decide Voss's credibility, attribute the statement to Pike, or apply it directly to summary judgment without district-court consideration. Nor does she challenge preservation of Wynn's timely comparator testimony or contend that the declaration merely repeated her deposition word for word.

At minimum, remand should permit the district court to consider a brief supplemental examination, limited additional briefing, costs caused by the delay, or another condition that addresses the actual prejudice. Rule 37(c)(1) authorizes measures beyond automatic exclusion, and Benjamin calls for application of all relevant circumstances. If this court instead affirms exclusion, it should make clear that the ruling concerns only the protected-activity subject and JA194–JA195. The remaining score, knowledge, timing, comparator, alternatives, redistribution, and explanation evidence must still receive the favorable Rule 56 inferences owed to Benton.

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Retaliation framework

Title VII prohibits an employer from discriminating against an employee because she opposed an unlawful employment practice or participated in a Title VII investigation or proceeding. Benton proceeds through the McDonnell Douglas method preserved for retaliation claims in Foster. At the first stage she shows protected activity, materially adverse action, and the required causal connection. Blue Cedar then articulates a legitimate reason. Benton bears the ultimate burden to show that the stated reason was pretext and retaliation was a but-for cause.

But-for causation does not require retaliation to be the only consideration or direct evidence of an instruction. A plaintiff may rely on timing and evidence that makes the stated selection reasons unworthy of belief. At summary judgment, the question is not which account the reviewing court finds more persuasive. It is whether the admitted proof, considered cumulatively and in Benton's favor, permits a reasonable factfinder to conclude that she would not have been selected absent her protected activity.

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Protected activity, Pike's knowledge, and timing

Benton's January 17 writing opposed what she described as a sex-based allocation of high-visibility audit leads and the resulting scoring effects. JA58–JA62. She filed an EEOC charge on February 3. JA35–JA39. Blue Cedar received the agency notice on February 10. The routing file records delivery to Pike that afternoon, his open event and preservation reply on February 11, and a February 12 meeting concerning the EEOC matter and staffing. JA63–JA65.

Pike admitted that before March 24 he knew Benton had raised an assignment issue and that an EEOC matter existed, while denying that he used either fact. JA116–JA125. The RIF workbook opened on February 14, four days after agency notice, and Pike selected B-7 on March 21. Benton was terminated March 24, exactly six weeks after Blue Cedar received notice. That sequence does not by itself prove pretext, but it is a concrete part of the cumulative inference and cannot be discounted merely because Pike denied retaliatory use.

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Benton's score changed without a new source metric

The February 14 import gave Benton 84 points, the highest score among the four managers compared. During calibration her continuity score fell from 22 to 14, availability from 12 to 6, and role uniqueness from 9 to 7. Her final score was 68. JA66–JA73, JA83–JA87. Voss and Solis entered the changes, and Pike approved the variances. The written protocol called for common measurement windows, traceable reasons, comparable evidence, and review of changes affecting an employee with an open protected-activity file. JA49–JA57.

Blue Cedar preserved the changes in the version log, but preservation is not consistency. Solis flagged different windows and unsupported distinctions before Pike approved the final scenario under “business continuity.” JA126–JA135. Benton was not interviewed before the reductions. A jury could accept Pike's coverage judgment. It could also infer that the unexplained departure from her documented metrics helped produce a desired ranking after he learned of her protected activity. Rule 56 does not allow the court to select between those supported views.

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Retained comparators received favorable exceptions

Wynn, Ibarra, and Keene shared Benton's supervisor, manager rubric, and overlapping audit work. Each received a favorable change or preserved credit during the same calibration. Wynn received continuity credit for a Lantern transition through May 30, while Benton's Northline and Oriole transitions extended into June. Ibarra received availability credit based on intended western travel despite Benton's greater completed travel. Keene received an increase to the maximum uniqueness credit for automation scripts without a documented transfer estimate. JA74–JA82, JA136–JA155.

Their final scores were 78, 78, and 75. Blue Cedar may explain the distinctions by portfolio, but the common protocol required comparable proof and Solis left consistency flags open. The dispute is not whether all managers were identical. It is whether the employer applied the asserted criteria evenhandedly when deciding whom to remove. A reasonable jury could find the combination of Benton's reductions and every retained manager's favorable treatment more probative than an innocent collection of isolated judgment calls.

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The savings target did not compel Benton's selection

Benton does not dispute that Blue Cedar sought $612,000 in annualized payroll and benefit savings or that the RIF eliminated five filled positions and two vacancies. The final B-7 scenario projected $618,400. JA66–JA73, JA166–JA175. The legitimacy of a company-wide savings goal does not answer why Pike chose Benton among managers. The workbook modeled alternatives C-4, D-2, and E-3 that retained Benton and reached the target when combined with the separately modeled $14,600 archive-hosting consolidation.

Those alternatives shifted only Wynn's Lantern duties, Ibarra's western travel, or Keene's automation scripts; Benton's Northline, Oriole, and remediation work remained with her. Pike said he rejected them for continuity, travel, and automation risk. Yet the scoring and comparator record places those very assessments in dispute. An employer may choose among qualifying plans, but the existence of discretion does not immunize the reason for exercising it. The alternatives show Benton was selected by judgment rather than arithmetic, making the credibility of the stated judgment material.

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Benton's functions continued after termination

Blue Cedar described Benton's management position as redundant, but the record shows her work was redistributed rather than discontinued. Wynn received Northline duties, Ibarra received Oriole, Keene received the remediation-review queue, and Voss chaired the monthly quality meeting. JA88–JA93, JA101–JA105. No manager with Benton's title was hired, and the elimination contributed real salary savings. Those facts support Blue Cedar on position count but do not establish why Benton, rather than another manager in a target-reaching plan, had to be removed.

Benton's performance evidence deepens that dispute. She closed forty-seven of fifty audits in 2024, completed twenty-eight travel days, held the relevant credentials, had no discipline, and was marked eligible for rehire. JA94–JA100. A jury need not infer that continued duties make every RIF pretextual. It may, however, compare the asserted redundancy with the volume and allocation of the work, the contemporaneous score changes, and the favorable credits given to employees who assumed her functions.

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Blue Cedar's explanation expanded over time

The March 24 termination letter spoke generally of reducing the budget and reallocating duplicative management functions. JA88–JA89. Blue Cedar's April agency submission later enumerated salary, operational coverage, completion status, and availability. In a July litigation-hold interview, Pike added travel willingness and client-confidence considerations to salary, redundancy, and completion. Yet no contemporaneous document recorded a client complaint about Benton; Pike later described “client confidence” as concern about continuity. JA88–JA93, JA116–JA125.

Blue Cedar calls these details facets of one coverage decision. Benton calls them an expanding account shaped after the event. The contemporaneous March 20 email cited savings, redundancy, and the retained managers' continuity, travel, and automation coverage, but did not identify poor performance or client dissatisfaction. A factfinder could accept the company's harmonization. It could instead find that increasingly specific reasons, some unsupported by contemporaneous records, make the original account less worthy of belief. Foster leaves that supported credibility choice to the factfinder, not the court at summary judgment.

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The admitted evidence supports a cumulative but-for inference

The district court acknowledged each irregularity but required an admitted motive statement to connect them. That approach fragmented the record. Pike knew about both forms of protected activity. The RIF began days after notice and ended in termination six weeks later. Benton's high imported score fell sixteen points while retained managers received favorable exceptions. Multiple plans met the stated target while keeping her. Her work continued, and Blue Cedar's explanation became more detailed over time.

No one item must carry the entire case. Together they permit a reasonable inference that the savings target was genuine but did not dictate the manager choice, and that the disputed coverage judgments supplied a vehicle for selecting the employee who had complained. The record also permits Blue Cedar's innocent account. That competing inference is why summary judgment cannot stand. Benton need not use Voss's excluded statement or prove that Voss controlled Pike; Pike's own knowledge and approval connect the admitted selection record to the ultimate decisionmaker.

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Requested disposition

Benton asks the court to vacate the Rule 37 exclusion and remand for consideration of a tailored cure. If the exclusion is affirmed, the court should preserve its exact boundary: only the new protected-activity subject and JA194–JA195 are unavailable on the merits; Wynn's disclosed comparator testimony remains admitted. Under either resolution, the court should review summary judgment on the independent record without drawing an adverse inference from the disclosure violation.

The court should vacate the December 19 summary judgment and final judgment because a reasonable factfinder could find pretext and but-for retaliation. Remand would not determine credibility, find that retaliation occurred, or prevent Blue Cedar from presenting its savings and coverage evidence. It would restore the jury's role in choosing between supported accounts. Counsel certifies that this brief was electronically filed and served on March 16, 2026. The requested disposition is vacatur of the exclusion, vacatur of judgment, and remand for proceedings consistent with this court's opinion.